

BMW CARDATA GENERAL TERMS AND CONDITIONS OF USE FOR COMMERCIAL USERS

General information

BMW CarData permits authorised third parties (hereinafter referred to as "USERS") to access the telematics data of BMW and MINI vehicles, such as the mileage or service requirements, provided that the relevant vehicle user (hereinafter referred to as the "CUSTOMER") agrees. Based on these telematics data, users can offer personalised services to their customers.

1. Conclusion and object of the contract

- 1.1. Bayerische Motoren Werke Aktiengesellschaft, Petuelring 130, 80788 Munich, registered office and registry court: Munich HRB 42243 (hereinafter referred to as "BMW") provides BMW CarData in accordance with these General Terms and Conditions of Use ("CONDITIONS OF USE"). A contractual relationship about the use of BMW CarData between BMW and the user is concluded as soon as the user has accepted these Conditions of Use.
- 1.2. The offer to make use of BMW CarData is solely addressed to company owners in terms of Section 14 of the German Federal Code (BGB).
- 1.3. The object of the contract is provision of vehicle data to which the user has access via BMW CarData against payment. The content of the vehicle data are the telematics data transmitted to BMW by BMW and MINI vehicles as part of using BMW ConnectedDrive or MINI Connected services.

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2. Utilisation of BMW CarData application on the AOS portal

Users need to register on the AOS portal in order to make use of BMW CarData and the services offered in this regard. They are also able to define their data needs, using the BMW CarData application on the AOS portal. A data requirement refers to a combination of telematics data which the user requires in order to be able to offer the customer specific services.

- 2.1. The basic requirement for the use of BMW CarData and the BMW CarData application is the user's registration on the [BMW AOS portal](#). The user bears the responsibility for the accuracy of the information required for registration. The user shall inform BMW about any such changes without delay. A valid credit card must be provided as a basic prerequisite for the use of BMW CarData.
- 2.2. At the time of registration, the user must name a BMW CarData contact person who is available to BMW as contact person for the implementation of the contract, for example for technical enquiries. BMW will only process the contact person's personal data for the aforementioned purposes and in accordance with current data security regulations. The user must ensure that the contact partner's personal data may be processed by BMW for the aforementioned purposes.

- 2.3. The user may create so-called "CONTAINERS" for his data requirements in order to request the release of the telematics data required for his business processes from the customer following customer's consent. The request for the release of a container is indicated to the customer as part of his ConnectedDrive contract by the national BMW sales company and then answered by the customer. These containers cannot be subsequently changed. Existing containers can be deleted.
- 2.4. The user can request a summary of the data transmissions in report form from BMW. This report will then be made available to him in the BMW CarData application on a monthly basis. Moreover, the user is informed by e-mail about the availability of a new report.
- 2.5. To the extent that there is a conflict between the terms and conditions of the AOS portal and the terms and conditions of BMW CarData, the terms and conditions of BMW CarData shall take precedence.

3. Utilisation of BMW CarData API

BMW provides the user with an API as part of BMW CarData. He can make use of this API to request the release of data from the customer and to download telematics data once such release has been confirmed.

- 3.1. BMW grants the user a non-exclusive, time-limited, non-transferable and revocable right to use the BMW CarData API.
- 3.2. The user of the BMW CarData API is not permitted:
 - to use the BMW CarData API to introduce malware such as viruses, worms, Trojan horses or other malware or technology of a destructive nature,
 - to defame, insult or threaten other persons involved,
 - to hinder or interrupt the servers or networks used in association with the BMW CarData API,
 - deliberately to send invalid, faulty or unauthorised requests to the BMW CarData API,
 - to promote or support illegal online gambling or interrupting promotional messages and advertising, or
 - to request a data release for a customer's vehicle without first consulting him.

BMW reserves the right to block users who violate the rules of these Conditions for Use.

- 3.3. The transmission of telematics data or an event notification may be sent to the web service every 5 minutes within a timeframe of 10 hours until transmission is successful (see Section 4). If it fails, BMW CarData will not make any further attempts at transmission. Instead, the event notifications will be collected once a day and sent to the contact address stored by BMW CarData by e-mail.
- 3.4. With the Capability Service, BMW provides the user with the option to request the technical capabilities of a vehicle within the scope of BMW CarData. The Capability Service may only be used
 - to request the technical properties and
 - of the customer vehicle with the customer's consent within the scope of an existing or new business relationship with the customer.

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- 3.5. The user must provide evidence of the prerequisites having been met, if so requested by BMW, in particular of the customer's consent, in accordance with Section 3.2.
- 3.6. Major updates of the API which cause technical interruptions of the Service, e.g. a new API version, are communicated at least 6 months prior to release date by BMW in order to admit time to the user for adaption of their application.

4. Web service for event reports

- 4.1. In order to be able to use the full range of BMW CarData, and especially the BMW CarData API to download telematics data, it is essential to implement the web service indicated by BMW. Technical information in this regard is available at [BMW CarData Integration Guide](#).
- 4.2. The purpose of the web service is to receive event notifications, which BMW CarData sends to the user in certain cases. Such an event notification is takes place, for example, if the customer has accepted or rejected the requested data release or also in relation to telematics data events such as the occurrence of a "Teleservice Battery Guard" event.

5. Availability

- 5.1. The occurrence of force majeure, including strikes, lock-outs and administrative orders, short-term capacity bottlenecks due to load peaks, faults in the telecommunications systems of third parties or the performance of technical or other activities on the systems of BMW or the network operators, which may be required to ensure the smooth functioning or to make improvements to the BMW CarData services (e.g. maintenance, repairs, system-related software updates, expansions), may result in interruptions or temporary failure of the BMW CarData application, the BMW CarData API or the web service for event notifications. BMW will take all reasonable steps to repair such faults or to contribute to their removal.
- 5.2. BMW CarData makes telematics data for telematics-enabled vehicles available to third parties after appropriate release by the customer in the customer portal. A vehicle is considered as generally telematics-enabled when it has a permanently installed SIM card and the TeleServices accessory has been booked. The availability of the telematics data depends on the BMW ConnectedDrive or MINI Connected Services used by the customer, the vehicle type, vehicle series, vehicle model and further technical accessory characteristics as well as the actual availability of the BMW ConnectedDrive or MINI Connected Services which in turn depends on various factors, particularly the availability of the mobile network required.

6. Payment conditions and prices

- 6.1. The provision of the telematics data (including the telematics data events) requested via BMW CarData is subject to payment by the user.
- 6.2. Fixed prices are charged for the provision of the telematics data. The prices depend on the type of telematics data transmitted to the user. The prices for the various telematics data may be consulted [here](#).

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- 6.3. The BMW Group reserves the right to adjust its prices at its fair discretion (Section 315 of the German Federal Code) and within reasonable limits when required, especially as a result of increasing operating costs for the provision of BMW CarData and the various BMW CarData functions. BMW will inform the user of any price changes at least six weeks before they become effective. This notification will inform the user about the reason for and extent of the price change in a generally comprehensible form. Price changes may only be implemented from the first day of the following month.
- 6.4. In the event of a price change, the user will be entitled in terms of Section 6.3 to cancel this contract without notice at the time at which the price change becomes effective. BMW will inform the customer about this right of cancellation at the same time as announcing the price change. Other contractual and legal right of cancellation will remain unaffected by this.
- 6.5. The costs incurred by the use of BMW CarData will be billed via credit card. The credit card can be added by the user during or after registration on the AOS portal (see Section 2).
- 6.6. The telematics data transmitted via the BMW CarData API will be billed at the end of each month. The costs of all data transfers will be added up.
- 6.7. The user can request a breakdown of the data transmissions in report form via the BMW CarData application (see Section 2.4). These reports list the costs for all successful data transmissions per container.
- 6.8. There will be no charge for telematics data transmitted without values. Vehicles without a sunroof, for example, cannot provide any status information for this accessory.

7. Use of the information provided and security

- 7.1. The user is solely responsible for the legality of further processing, as well as for the security of the customers' telematics data within the user's system.
- 7.2. BMW reserves the right to block the user's access to BMW CarData in the event that any illegal or improper use of BMW CarData should come to its attention, as well as to cancel the contract with immediate effect. Improper use particularly applies in the event of a technical abuse of BMW CarData and the BMW CarData API, as well as in the event that telematics data provided by the user are used in a way that does not correspond to the purpose for which the customer has released such data.

8. Use of BMW trademarks, logos and word marks

The user is prohibited from using BMW trademarks, logos and word marks, except when this is permitted by law or when it was explicitly approved in writing by BMW. After successful registration for BMW CarData, the user is permitted to refer in text form on his website or in user documents to the use of BMW CarData. However, the use of BMW CarData may under no circumstances be described as "Cooperation with BMW", "Partnership with BMW", "Powered by BMW" or in any other way that indicates a joint activity.

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9. Contract term

- 9.1. The contract about the use of BMW CarData is unlimited. The user can cancel the contract at any time by giving one month's notice for the end of any month. Irrespective of the customer's releases, no further telematics data will be made available to the user after the end of the contract term.
- 9.2. The user remains solely responsible for further processing of the telematics data of a customer previously transmitted, even after cancellation of the contract.
- 9.3. The contract for the use of BMW CarData can only be cancelled via Support on the [AOS Portal](#).
- 9.4. BMW can cancel the contract for the use of BMW CarData at any time, provided that six weeks' notice are given.

10. Liability

- 10.1. BMW does not accept liability for updating the data and information transmitted via BMW CarData. The same applies to the consequences of faults, interruptions and malfunctioning of BMW CarData, especially in the cases described in Section 5.
- 10.2. In the event of slight negligence, BMW is only liable if it has violated its major obligations in terms of the content and purpose of the contract, or if only meeting such obligations makes due execution of the contract possible or if the customer regularly relies on or may rely on such obligations being met. Such liability is limited to the typical damage that can be foreseen at the time of concluding the contract.
- 10.3. The personal liability of the legal representatives, agents and employees of BMW for any damage resulting from their slight negligence is also limited to the extent described in the previous paragraph.
- 10.4. The liability of BMW in the event of malicious non-disclosure of a defect, resulting from the assumption of a guarantee or a procurement risk and in terms of the product liability laws remains unaffected. Liability restrictions do not apply in the event of malicious intent, gross negligence, death, bodily injury or damage to health.

11. Data security

Data transmission within the context of BMW CarData always takes place in encrypted form and by TLS protocol (Transport Layer Security).

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12. Right of amendment reserved

- 12.1. BMW reserves the right to modify the scope of services of BMW CarData, in as far as the user can be expected to accept such a modification in relation to the overall scope. In the event of further modifications to the scope of BMW CarData services, the user will be notified in advance.
- 12.2. BMW reserves the right to implement changes or additions to these Conditions of Use at any time where this appears to be necessary and where this does not disadvantage the user in bad faith. BMW will inform its users of such changes in advance. They will form part of the contract terms if the user does not object to the changes within one month after receiving the notification. If the user does not agree to changes, BMW reserves the right to cancel its contract with the user.

13. Applicable law and place of jurisdiction

All disputes resulting from or in connection with this contract are subject to the laws of the Federal Republic of Germany, with the exclusion of the UN Sales Convention. The place of fulfilment and sole jurisdiction for all claims related to this contract will be Munich, unless otherwise prescribed by law.

Date: September 2020

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